

(49)

Tentative Ruling

Re: ***Zinkin v. Pickett & Sons Construction, Inc., et al.***
Superior Court Case No. 23CECG03579

Hearing Date: July 21, 2026 (Dept. 403)

Motion: By Defendant Pickett & Sons Construction, Inc. to Bifurcate Trial

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 597.)

Explanation:

Defendant Pickett & Sons Construction, Inc. ("Defendant"), moves for an order bifurcating trial pursuant to Code of Civil Procedure section 597. Code of Civil Procedure section 597 states, in pertinent part:

When the answer pleads that the action is barred by the statute of limitations... the court may, either upon its own motion or upon the motion of any party, proceed to the trial of the special defense... before the trial of any other issue in the case....

The decision to grant or deny a motion to bifurcate issues and to have separate trials, lies within the court's sound discretion. (Code Civ. Proc. §§ 598, 1048, subd. (b); *Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 503-504; see also *Cook v. Superior Court* (1971) 19 Cal.App.3d 832, 834.) The court also has the power to "provide for the orderly conduct of proceedings before it," and to "amend and control its process and orders so as to make them conform to law and justice." (Code Civ. Proc. § 128, subd. (a)(3), (8).)

Defendant has raised the statute of limitations and standing as defenses to plaintiff Dewayne Zinkin's ("Plaintiff") claims and requests a trial on the defenses before the trial of Plaintiff's claims and the cross-complaints. Plaintiff opposes on the basis that the witnesses and testimony Plaintiff would require to counter the statute of limitations defense are duplicative of Plaintiff's liability case and would include expert testimony about complex construction issues. Thus, Plaintiff argues a separate trial would not promote judicial economy. Defendant argues that such expert evidence is not necessary. Plaintiff also raises the possibility of adding the LLC that owns the building as a party of the lawsuit which would resolve the standing issue. Defendant argues that any motion filed by Plaintiff to add the LLC that owns the building would run into multiple issues and is not guaranteed to be granted.

The request for bifurcation made by Defendant is premature. The issue of standing may be made irrelevant by an intervening motion before trial. It is also not apparent, at

this time, whether bifurcation of the statute of limitations defense would promote judicial economy. Defendant argues whether expert evidence should be presented for Plaintiff's argument against the statute of limitations. Witness and evidence issues are matters for trial readiness and motions in limine. Accordingly, the motion is denied, without prejudice to a possible motion in limine.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 20, 2026.
(Judge's initials) (Date)